

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zim Sessoms	Team: Squad #02	CCRB Case #: 202204298	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/18/2022 2:40 AM	Location of Incident: Church Avenue and East 48th Street	18 Mo. SOL 12/18/2023	Precinct: 67		
Date/Time CV Reported Sat, 06/18/2022 3:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/30/2022 1:27 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Robert Cox	03721	948821	067 PCT
2. DTS Fabian Modesto	08846	950897	067 PCT
3. PO Larry Feng	29929	965087	067 PCT
4. SGT Leonardo Deoliveira	01257	946681	067 PCT
5. PO Dennis Diaz	01270	966541	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Dennis Wu	18327	961463	067 PCT
2. PO Ryan Barba	29699	964908	067 PCT
3. PO Julio Martinez	07078	958882	067 PCT
4. PO Christian Perez	14888	966266	067 PCT
5. PO Diana Carrillo	16586	960330	067 PCT
6. PO Alexander Campos	23389	968992	067 PCT
7. PO Konstantin Nuksha	14008	963671	067 PCT
8. PO John Malone	11542	966186	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Leonardo Deoliveira	Abuse: Sergeant Leonardo Deoliveira stopped § 87(2)(b)	A . Exonerated
B . SGT Leonardo Deoliveira	Abuse: Sergeant Leonardo Deoliveira stopped an individual.	B . Exonerated
C . SGT Robert Cox	Abuse: Sergeant Robert Cox stopped § 87(2)(b)	C . Exonerated
D . SGT Robert Cox	Abuse: Sergeant Robert Cox stopped an individual.	D . Exonerated
E . PO Larry Feng	Abuse: Police Officer Larry Feng threatened to seize § 87(2)(b)'s property.	E . Exonerated
F . SGT Robert Cox	Abuse: Sergeant Robert Cox searched the vehicle in which § 87(2)(b) was an occupant.	F . Exonerated
G . DTS Fabian Modesto	Abuse: Police Officer Fabian Modesto searched the vehicle in which § 87(2)(b) was an occupant.	G . Exonerated
H . PO Dennis Diaz	Abuse: Police Officer Dennis Diaz seized § 87(2)(b)'s property.	H . Unfounded
§ 87(2)(g), § 87(4-b)		

Case Summary

On June 18, 2022, § 87(2)(b) filed the following complaint with IAB by telephone. On June 30, 2022, the CCRB received the complaint from IAB (**BR 1**).

At approximately 2:40 a.m., on June 18, 2022, § 87(2)(b) was standing beside his 2017 Black Nissan Maxima, which was parked in a crosswalk at the intersection of Church Avenue and East 48th Street in Brooklyn, talking to a female companion, whom he refused to identify, who was seated in the front passenger seat, when approximately three unmarked NYPD vehicles arrived near his vehicle. Sergeant Leonardo Deoliveira, Sergeant Robert Cox, Detective Fabian Modesto, and Police Officers Larry Feng, Dennis Wu, Dennis Diaz, Ryan Barba, Julio Martinez, and Christian Perez exited the three vehicles and approached § 87(2)(b) (**Allegations (A)(B)(C) and (D) Abuse of Authority: Stop, Within NYPD Guidelines**). While § 87(2)(b) was speaking to the officers, Police Officer Feng told § 87(2)(b) that his vehicle would be towed if he did not move it (**Allegation (E) Abuse of Authority: Threat to seize property, Within NYPD Guidelines**).

As § 87(2)(b) was engaging with the other officers, he heard Sergeant Cox and Detective Modesto open the doors of his vehicle (**Allegation (F) and (G) Abuse of Authority: Search, Within NYPD Guidelines**). After speaking with § 87(2)(b) all officers then left the scene without giving § 87(2)(b) a summons. The officers allegedly seized the license plate of § 87(2)(b)'s vehicle (**Allegation (H) Abuse of Authority: Seizure of Property, unfounded**).

§ 87(2)(g), § 87(4-b)

Body-worn camera (BWC) footage was obtained from the BWCs of Sergeant Deoliveira, Sergeant Cox, Detective Modesto, and Police Officers Feng, Wu, Diaz, Barba, Martinez, Perez, Diana Carrillo, Alexander Campos, Konstantin Nuksha, and John Malone (**BR 3-11, 29**).

Allegation (A) Abuse of Authority: Sergeant Leonardo Deoliveira stopped § 87(2)(b).

Allegation (B) Abuse of Authority: Sergeant Leonardo Deoliveira stopped an individual.

Allegation (C) Abuse of Authority: Sergeant Robert Cox stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Robert Cox stopped an individual.

§ 87(2)(b) was interviewed by the CCRB on July 14, 2022 (**BR 2**). Detective Modesto was interviewed by the CCRB on September 14, 2022 (**BR 15**). Sergeant Deoliveira was interviewed by the CCRB on November 3, 2022 (**BR 17**). Sergeant Cox was interviewed by the CCRB on December 21, 2022 (**BR 20**).

It is undisputed that § 87(2)(b) was standing beside his vehicle when officers approached.

§ 87(2)(b) stated that he was beside his parked 2017 Nissan Maxima talking to his female friend (who was in the front passenger seat) when three unmarked vehicles approached his vehicle. Several officers exited, shining bright flashlights towards § 87(2)(b) and his vehicle, and told him not to move.

Sergeant Cox, Sergeant Deoliveira, and Detective Modesto § 87(2)(g) were on patrol in a caravan of three unmarked vehicles when they observed § 87(2)(b)'s vehicle, the windows of which were heavily tinted, parked in a crosswalk, with a female seated in the front passenger seat and § 87(2)(b) standing beside the vehicle. All three officers stated that they considered the

subsequent interaction to be a vehicle stop, rather than a street stop, because § 87(2)(b)'s vehicle was committing VTL infractions, including blocking a crosswalk and having illegal tints.

Footage from the BWC of Sergeant Deoliveira (**BR 7**), beginning at 59 seconds, shows § 87(2)(b) outside of his vehicle, behind the rear passenger side, as Sergeant Deoliveira and fellow members of the Public Safety team exit their vehicles and approach him. § 87(2)(b)'s vehicle is parked across a pedestrian crosswalk, completely blocking the path between the sidewalk and the street. At 1 minute and 2 seconds, Sergeant Cox approaches the front driver's door of § 87(2)(b)'s vehicle. At 1 minute and 5 seconds, § 87(2)(b)'s front passenger window is partially rolled down and a female is seen sitting in the front passenger seat. The officers inform § 87(2)(b) that his vehicle is parked in the crosswalk, has dark tints, and has a cover on its license plate. The officers request § 87(2)(b) ID and he states that he does not have ID. Police Officer Modeste asks the female passenger for her ID, stating that she resembled an individual on a wanted poster, and she provides it.

New York Vehicle Traffic Law 375 12(b) (2)(3)(4) (BR 13) states that no person shall operate a motor vehicle if the front, side, and rear window is treated by any material with a light transmittance of less than seventy percent. The owner and operator a motor vehicle in violation of this provision shall be guilty of a traffic infraction.

New York Vehicle Traffic Law 1202 (1)(d) (BR 14) states that no person shall stop, stand or park a vehicle on a cross walk unless it is necessary to avoid conflict with other traffic, or when in compliance with the direction of a police officer or the law.

In People v De Bour, 40 N.Y.2d 210 (1976) (**BR 25**) amongst the requirements outlined for an officer to conduct a stop of an individual, the officers must have reasonable suspicion that the individual has committed, is committing, or is about to commit a felony or misdemeanor.

In People v Ocasio, 119 A.D.2d 21 (1986) (**BR 32**), the court ruled that “police officers may stop a vehicle, or approach a parked vehicle, when they reasonably suspect a violation of the Vehicle and Traffic Law. As the officers observed defendant's car double parked and bearing a cracked windshield, they were entirely justified in approaching the car... to speak to defendant, who was the driver of the car, and inspect his driver's license, registration and insurance card.”

§ 87(2)(g)

_____. It is therefore recommended that **allegations A, B, C, and D** be closed as **Within NYPD Guidelines**.

Allegation (E) Abuse of Authority: Police Officer Larry Feng threatened to seize § 87(2)(b)'s property.

In Police Officer Diaz's BWC (**BR 4**), at 2 minutes and 26 seconds, § 87(2)(b) states, “That's not me driving the car, so you do whatever you want to do to the car.” Police Officer Feng replies, “You want to do this!? You want to do that!? How about I tow your car!?” § 87(2)(b) then tells Police Officer Feng, “Tow it. Tow it.”

Sergeant Deoliveira and Detective Modesto both stated that § 87(2)(b)'s vehicle could have been towed if he did not remove it from the crosswalk.

New York Vehicle Traffic Law 1204 (b)(1) (BR 23) states that whenever a police officer finds a vehicle unattended where it constitutes an obstruction to traffic, or any place where stopping, standing or parking is prohibited, the officer is authorized to provide for the removal of the vehicle.

New York Vehicle Traffic Law 1202 (1)(d) (BR 14) states that no person shall stop, stand or park a vehicle on a cross walk unless it is necessary to avoid conflict with other traffic, or when in compliance with the direction of a police officer or the law.

§ 87(2)(g)

Therefore, it is recommended that **allegation E** be closed as **Within NYPD Guidelines**.

Allegation (F) Abuse of Authority: Sergeant Robert Cox searched the vehicle in which

§ 87(2)(b) **was an occupant**

Allegation (G) Abuse of Authority: Police Officer Fabian Modesto searched the vehicle in which

§ 87(2)(b) **was an occupant**

It is undisputed that Sergeant Cox opened the front passenger door of § 87(2)(b)'s vehicle, and that Detective Modesto opened the rear passenger door.

§ 87(2)(b) stated that while he was speaking to officers, he heard his vehicle doors opening.

In the footage from Sergeant Cox's BWC (**BR 6**), at 1 minute and 2 seconds, Sergeant Cox begins shining his flashlight at the front windows of § 87(2)(b)'s vehicle, which appear to be heavily tinted. At 1 minute and 25 seconds, Sergeant Cox opens the front driver's side door and then begins to roll down the windows using the control pad on the door panel. Sergeant Cox tells the passenger in the front passenger seat, "I just can't see, that's all." Sergeant Cox then shines his flashlight at the inside of the door and then the front driver's side seat. Sergeant Cox then shines his flashlight at the rear driver's side seat from outside of the vehicle. At 1 minute and 48 seconds, § 87(2)(b) asks Sergeant Cox, "Why are you in the car?" Sergeant Cox responds, "I can't see, you have dark tints." § 87(2)(b) then asks Sergeant Cox, "Why are you opening the door?" Sergeant Cox then responds, "Do you want to hear it a third time? You have dark tints." He does not appear to reach into or enter the vehicle itself at any point.

Footage from Detective Modesto's BWC (**BR 5**), at 1 minute, shows Detective Modesto approaching § 87(2)(b) who is holding a flashlight in his right hand, and telling him, "Sup boss man, do me a favor and let me get that." § 87(2)(b) responds, "For what?" Detective Modesto replies, "It might be a weapon, man." Detective Modesto then takes the flashlight out of § 87(2)(b)'s hands, opens the rear passenger door of § 87(2)(b)'s vehicle, and places § 87(2)(b)'s flashlight into the back seat. At 1 minute and 17 seconds, Detective Modesto shines his flashlight at the floor of the rear passenger seat area. At 1 minute and 35 seconds, Detective Modesto shines his flashlight at the rear passenger seat area along with the rear driver's seat area. At 2 minutes and 33 seconds, Detective Modesto walks over to the rear driver's side door and shines his flashlight at the rear driver's seat area. Beyond placing § 87(2)(b)'s flashlight into his vehicle, he does not appear to reach into or enter § 87(2)(b)'s vehicle at any other point.

Sergeant Cox stated that he when he approached § 87(2)(b)'s vehicle, he observed that it was heavily tinted and parked in the crosswalk. Once Sergeant Cox arrived at § 87(2)(b)'s vehicle, he shined his flashlight at the tinted windows of the vehicle and could barely see anything inside

except what appeared to be a female passenger in the front passenger seat. As Sergeant Cox was unable to see inside and did not know what or who could be inside § 87(2)(b)'s vehicle, he opened the front driver's side door of the vehicle and rolled down the windows.

Detective Modesto stated that when he approached § 87(2)(b) he had a 12-inch MAG flashlight in his hands. After § 87(2)(b) refused to hand over the flashlight, Detective Modesto took it from him as it could have potentially been used as a weapon. After taking § 87(2)(b)'s flashlight, Detective Modesto opened the rear passenger side door in order to place § 87(2)(b)'s flashlight inside the vehicle. He then shined his flashlight into the rear passenger seat area from outside of the vehicle. Detective Modesto wanted to make sure there were no weapon or narcotics inside of § 87(2)(b)'s vehicle when he shined his flashlight inside of the vehicle as is normal for what he believed to be a vehicle stop.

In People v. Robinson, 115 A.D2d 411 (1985) (**BR 34**), the court concluded that if the initial stop of a vehicle is valid, shining a flashlight into the interior of a vehicle to illuminate what would have been in plain view in daylight does not constitute an unreasonable intrusion.

In People v. Funderbunk, 122 A.D.3d 515 (2014) (**BR 30**) the court concluded that officers opening the doors of a vehicle with excessive tints that obstructed their view of the interior of the vehicle during a lawful traffic stop was a reasonable and minimally intrusive safety precaution.

§ 87(2)(g)
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§ 87(2)(g)
Therefore, it is recommended that allegations F and G be closed as **Within NYPD Guidelines**.

Allegation (H) Abuse of Authority: Police Officer Dennis Diaz seized § 87(2)(b)'s property.

§ 87(2)(b) stated that while he was interacting with the officers, he heard his license plate fall to the ground and make a scraping sound. Once the officers left, § 87(2)(b) noticed his license plate was missing.

BWC footage from Police Officer Barba (**BR 29**), at 3 minutes and 45 seconds, shows § 87(2)(b) looking at his license plate as Police Officer Barba attempts to inspect it as it is obstructed by a plate cover. At 3 minutes and 55 seconds, Police Officer Barba touches § 87(2)(b)'s license plate and it falls to the ground as § 87(2)(b) watches. At 4 minutes and 1 second, Police Officer Diaz picks up the license plate and places it on top of the trunk of § 87(2)(b)'s vehicle, as § 87(2)(b) watches. Police Officer Diaz then takes a picture of the license plate on his department phone. At 4 minutes and 10 seconds, Police Officer Diaz attempts to hand the license plate to § 87(2)(b) but he stares at it and refuses to take it. Police Officer Diaz then places the license plate in the back seat of § 87(2)(b)'s vehicle, as § 87(2)(b) watches.

New York Vehicle Traffic Law 402 (1b) (**BR 12**) states that number plates should be easily readable and shall not be covered by glass or any plastic material. Violation shall be punishable by a fine of no less than twenty-five dollars and no more than two hundred dollars.

§ 87(2)(g)

. Therefore, it is recommended that **allegation H** be **unfounded**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four other CCRB complaints and has been named as a victim in 16 other allegations (**BR 21**):
 - § 87(2)(b)
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- Police Officer Diaz has been a member of service for four years and this is the first CCRB complaint to which he has been a subject.
- Sergeant Deoliveira has been a member of service for 14 and has been a subject in 10 other CCRB complaints and 19 allegations, of which one was substantiated.:
 - Case #201000408 involved a substantiated allegation of a Stop against Sergeant Deoliveira. The Board recommended Charges but the NYPD declined to prosecute and imposed no disciplinary action.
- Sergeant Cox has been a member of service for 12 years and has been a subject in four other CCRB complaints and five other allegations, three of which were substantiated in one case.
 - Case #201505431 involved substantiated allegations of Frisk, Search of Person, and a Stop against Sergeant Cox. The Board recommended Command Discipline B but the NYPD imposed formalized training.
- Detective Modesto has been a member of service for 11 years and has been a subject in eight other CCRB complaints and 27 other allegations, one of which was substantiated.
 - Case #201904830 involved a substantiated allegation of Discourtesy-Word against Detective Modesto. The board recommended Command Discipline A, and the NYPD has yet to issue disciplinary action.
- Police Officer Feng has been a member of service for 5 years and has been a subject in 3 other CCRB complaints and 3 other allegations, one of which was substantiated.

- CCRB #20202394 involved a substantiated allegation of Discourtesy-Word, against Police Officer Feng. The board recommended Command Discipline A, which the NYPD imposed.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of January 17, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR 33**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 2

Investigator:	<u>Zim Sessoms</u>	<u>Inv. Zim Sessoms</u>	<u>09/08/23</u>
	Signature	Print Title & Name	Date

Squad Leader: Alexander Opoku-Agyemang IM Opoku-Agyemang 9/12/23
Signature Print Title & Name Date

Reviewer: _____

Signature	Print Title & Name	Date
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